Atul Gupta vs State Of Nct Of Delhi on 21 February, 2011

Author: Shiv Narayan Dhingra

Bench: Shiv Narayan Dhingra

* IN THE HIGH COURT OF DELHI AT NEW DELHI

Date of Reserve: 24th January, 2011

Date of Order: February 21, 2011

+ Bail Appln. No. 85/2011

% 21.02.2011

Atul Gupta ...Petitioner

Versus

State of NCT of Delhi ...Respondent

Counsels:

Mr. S.D. Singh, Mr. Rahul Kr. Singh for petitioner.
Mr. Sunil Sharma, APP for State/respondent with Insp. Ashu Girotra, EOW Crime.

JUSTICE SHIV NARAYAN DHINGRA

1. Whether reporters of local papers may be allowed to see the judgment?
2. To be referred to the reporter or not?
3. Whether judgment should be reported in Digest?

ORDER

1. This application for anticipatory bail has been preferred by the petitioner/accused who is a practicing advocate and claims to be a handicapped person.

2. The allegations against the petitioner are that in a family matter, he was given a power of attorney by his uncle to represent him in the High Court in CS (OS) No.2495 of 2001. This suit was in respect of ownership rights of the complainant and other plaintiff over immovable property in Delhi. The accused Atul Gupta was trusted by his uncle living in U.P. and gave him power of attorney, since he was an advocate and working with a senior advocate Mr. Sharad Kumar Bail Appln. 85/2011 Page 1 Of 3 Aggarwal. The accused got his senior Mr. Sharad Aggarwal engaged for his uncle to contest the case. In the year 2006, the complainant received a notice from MCD and from this notice, he learnt that the property in question was being mutated by MCD in the name of defendants. Inquiries were

made from the accused but the accused was unable to give satisfactory answer. On this, another advocate was engaged and it was found that the accused while acting as a power of attorney on behalf of his uncle and relatives mixed up with other side and prepared a false compromise deed on behalf of these relatives and prepared an application for compromise without instructions from them and moved it in the Court to get a compromise decree in favour of opposite party. He received drafts for a sum of Rs.10 lac to be paid to the plaintiffs from defendants. It was averred in the compromise that for a sum of Rs.10 lac, the plaintiffs have given up their rights in the property while no such agreement was ever entered into nor the accused was authorized to do so. The accused thus deprived the complainant of the property by playing fraud mixing up with opposite party. Further investigation revealed that the drafts received for the plaintiffs in the names of different plaintiffs were deposited by opening forged accounts in different banks by the accused by searching out persons of similar names. A draft for sum of Rs.2 lac in the name of complainant Sushil Kumar was got encahsed by opening an account in the name of some other Sushil Kumar. Similarly a draft in the name of Ravi Kumar, another plaintiff was got encashed by opening an account in the name of another Ravi Kumar in UCO Bank, High Court of Delhi. A draft of Rs.3 lac was taken by the present accused in his own name although he was not the plaintiff in the suit and he got this draft encashed. Similarly a draft in the name of Narender Kumar Aggarwal and Avanish Kumar Aggarwal were got encahsed by opening Bail Appln. 85/2011 Page 2 Of 3 accounts in these names through different persons. These six bank drafts, which he got encashed, were issued by ICICI Bank, Hapur, U.P from the account of Ashish Goel. Ashish Goel was brother in law of Pradeep Kumar, defendant.

3. Investigation further revealed that Sushil Kumar in whose name the account was got opened for encashment of draft was a driver of Suresh Tyagi and Suresh Tyagi was a friend of accused Atul Gupta. Similarly, the draft in the name of Ravi Kumar was got encashed by opening an account in the name of Ravi Kumar, a canteen boy in Delhi High Court canteen. The draft of Rs.1.5 lac issued in the name of A.R. Gupta complainant was got credited by the accused Atul Gupta in his own name since he was having similar name as A.R. Gupta. In this manner, drafts of Rs.10 lac shown as compromise amount were got encashed by the accused Atul Gupta himself through different persons.

4. It is thus prima facie apparent that applicant/ accused Atul Gupta, an advocate, deliberately indulged into a large scale forgery and cheating. He deprived the complainant of his rights in the property by misusing the trust of the complainant and by playing fraud upon the complainant and he indulged into forgery and got the forged accounts opened in different names finding different persons known to him and got encahsed drafts. The entire conspiracy entered into by this accused has to be unearthed. I consider that this conspiracy can be unearthed only by his custodial interrogation. The accused/ petitioner is not entitled for grant of anticipatory bail. The bail application is hereby dismissed.

February 21, 2011 SHIV NARAYAN DHINGRA, J
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